

Delaware County Commissioners Meeting May 5th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=fRe3WNdX_eE
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Target Category	delaware_county

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Delaware County Commissioner Meeting Report

Date & Time: May 5, 2025, 9:01 AM

Body: Delaware County Commissioners

1. Pre-Meeting Hearings & Committee Work Sessions

The regular meeting incorporated a statutory public hearing held immediately prior to substantive board action.

- **Session Type & Topic:** Public Hearing on Proposed County Traffic Ordinances (00:02:54).
- **Summary of Discussion:** Paula presented traffic study findings conducted over the past year in response to citizen complaints regarding speeds, all-way stops, and heavy semi-truck traffic. Proposals included setting speed limits on previously unposted county roads (such as Shindelle Road, County Road 100 West, County Road 400 West, and others), updating classifications and speed limits near residential and Amish-populated areas, establishing all-way stops at high-risk/obstructed intersections (including 1000 North/500 West and the T-intersection at 461/462 East and 550 South), and restricting semi-trucks on 400 South between State Road 67 and 600 West (excluding farm/agricultural traffic).

Tommy supplemented the presentation regarding the 775 South / Old Road intersection plan to widen corners and address truck turning radius issues.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the Delaware County Commissioner meeting on Monday, May 5, 2025, at 9:01 AM.
 - **Attendance:**
 - Presiding Officer / Board Members present explicitly in roll call: Commissioner Brand, Commissioner Reagan, and Commissioner Henry.
 - Absent: None noted.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening with the Pledge of Allegiance (00:00:27). Opening announcement regarding the appointment of Jenna Kalin as Executive Administrator / Assistant to the Commissioners following Sarah Hajes' departure (00:01:07).
 - *Action & Vote:* Motion to appoint Jenna Kalin. **Passed Unanimously** by roll call vote (00:02:39).
 - **Approval of Minutes:** Review of the April 21, 2025 commissioner meeting minutes with a correction to spell "Exilio" correctly under the solar moratorium (00:34:47).
 - *Action & Vote:* Approved with corrections by roll call vote (00:35:11).
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4. Substantive Business & Board Action

- **02:02:03 Table Business: Solar Moratorium Update**
 - *Sponsor / Presenter:* Commissioner Henry / Board.
 - *Deliberation Summary:* Discussion on ongoing meetings with developers (Exilio), firm FEMA flood maps governing limitations rather than setbacks, prime farmland definitions, property value guarantees, tax exemptions when sold to regulated utilities, and lack of historical decommissioning examples.
 - *Action & Vote:* Taken off the table for updates and returned to table (02:28:29).
- **00:28:54 Table Business: Land Bank Request (Nate Howard)**
 - *Sponsor / Presenter:* Nate Howard / Commissioners.
 - *Deliberation Summary:* Review of original request for \$2.8 million over 5 years utilizing ARP funds. Board noted funds do not exist and expressed preference for local redevelopment commission priority on tax-delinquent properties before land bank transfer.

- *Action & Vote:* Motion to vote down/turn down the proposal as requested. **Passed Unanimously** by roll call vote (00:30:46).
- **00:30:54 Table Business / Property Request: 804 East Willard Street**
 - *Sponsor / Presenter:* Angelina Spins (representing Women Support Girls / Women Support Each Other).
 - *Deliberation Summary:* Request to acquire parcel 804 East Willard for use as an adjacent parking lot for their community headquarters at 806 East Willard. Statutes allow transfer to qualifying tax-exempt entities for \$1.00 by resolution.
 - *Action & Vote:* Motion to transfer property to the group for \$1.00. **Passed Unanimously** by roll call vote (00:34:18).
- **00:37:05 CCMG Paving Bids & Contract (Ordinance 2025-2)**
 - *Sponsor / Presenter:* John / Highway Department.
 - *Deliberation Summary:* Review of bids for CCMG paving package. Brooks Construction submitted the responsive and responsible bid of \$972,860. (Competitor EMB Paving bid \$984,235.40). Covers multiple county road segments as a total package.
 - *Action & Vote:* Approved contract with Brooks Construction for \$972,860 by roll call vote (00:39:38).
- **00:39:55 LPA Consulting Contract: Bridge No. 30 (Eaten Albany Pike)**
 - *Sponsor / Presenter:* Highway Department / INDOT.
 - *Deliberation Summary:* INDOT-approved consulting contract with Beam, Longest and Neff, Inc. (BLC) for right-of-way work associated with federal 80-20 bridge super-structure replacement funds totaling \$16,855 (county 20% match).
 - *Action & Vote:* Approved by roll call vote (00:42:11).
- **02:06:31 Table Business / Property Proposals: 315 East Main Street**
 - *Sponsor / Presenter:* Devin Carter (representing Sandra Bass and Arlena Thomas and Nate Howard (Muncie Redevelopment Commission)).
 - *Deliberation Summary:* Competing interests for a county-deeded vacant lot following a demolition costing \$17,000. Neighbors want it for personal yard/sunroom expansion; Muncie Redevelopment Commission seeks it for affordable housing/infill inventory. Legal counsel advised publishing the property for sale/proposals to follow statutory procedures.
 - *Action & Vote:* Motion to table, publish notice for sale, and evaluate proposals at the next meeting. **Passed Unanimously** by roll call vote (01:07:12).
- **01:08:04 Delaware County Mental Health Facility Change Order No. 1**
 - *Sponsor / Presenter:* Mark Manship.
 - *Deliberation Summary:* No-cost change order to extend the completion deadline for the mental health facility project.
 - *Action & Vote:* Approved by roll call vote (01:08:56).
- **01:09:19 Electronic Payment Services Agreement (PGV)**
 - *Sponsor / Presenter:* Rick Spangler (County Clerk) & Jeff Henser (Adult Probation).

- *Deliberation Summary:* Proposed switch to a new electronic payment vendor (PGV) providing better customer service and lower fees for clients (\$1.00 flat fee for payments \$30 and under instead of 3.5%). Approved by board of judges. Month-to-month term with 30-day cancellation.
 - *Action & Vote:* Approved by roll call vote (01:13:37).
- **01:18:48 Comcast Agreements & Internet Service for Mental Health Facility**
 - *Sponsor / Presenter:* Board / John.
 - *Deliberation Summary:* Master Service Agreement and Statement of Work with Comcast to provide internet service required for building inspections and certificate of occupancy. Total cost: \$755/month (\$9,060.60/year) plus recurring equipment fees of \$39.95/month (\$479/year), totaling \$9,540/year. Billing/email address corrections noted for the auditor's office.
 - *Action & Vote:* Approved with address/email corrections by roll call vote (01:17:00).
- **01:15:10 Mental Health Facility Construction Pay Request / Disbursement**
 - *Sponsor / Presenter:* John / Commissioners.
 - *Deliberation Summary:* Progress payment / disbursement request submitted by Justin for the mental health facility project totaling \$486,615.10, funded out of ARP revenue replacement.
 - *Action & Vote:* Approved by roll call vote (01:17:00).
- **01:17:10 Ordinance 2025-10: Traffic Regulation Amendment (First Reading)**
 - *Sponsor / Presenter:* Commissioners / Paula.
 - *Deliberation Summary:* Introduction of ordinance amending traffic regulations on certain public streets based on preceding public hearing.
 - *Action & Vote:* Introduced and approved on first reading by roll call vote (01:17:35).
- **01:17:47 Resolution 2025-009: Proclamation Honoring Dr. Donna Wilkins**
 - *Sponsor / Presenter:* Commissioner Reagan / Board.
 - *Deliberation Summary:* Proclamation honoring retiring Chief Health Officer Dr. Donna Wilkins for over three decades of public health service and declaring June 27, 2025, as "Donna Wilkins Day" in Delaware County.
 - *Action & Vote:* Approved by roll call vote (01:23:07).
- **01:23:15 Justice Center Fitness Room Equipment Purchase**
 - *Sponsor / Presenter:* Jeff Stanley (Chief Deputy Sheriff) & Jane Miranda.
 - *Deliberation Summary:* Request to purchase commercial-grade replacement fitness equipment from Rogue Fitness (Ohio) totaling \$41,900 for the Justice Center fitness facility used by county and clinic employees. Delivery is free, and installation will be handled by the Sheriff's SWAT team. Funded via ARP.
 - *Action & Vote:* Approved by roll call vote (01:26:54).
- **01:27:07 County Distributor Truck Asset Transfer to City of Muncie**
 - *Sponsor / Presenter:* Don Humber (Maintenance Supervisor) / Board.
 - *Deliberation Summary:* Proposal to transfer an old county asphalt distributor truck (out of service since 2020, estimated market value \$2,000 to \$4,000) to the

City of Muncie to support local operations and maintain interlocal cooperation.

- *Action & Vote:* Approved to transfer asset and prepare resolution by roll call vote (01:30:28).

5. Open Public Comment / Citizen Forum

- **01:39:00 Robert Shroyer:** Discussed federal/state shifts in power, cautioned commissioners to tread carefully regarding establishing new stop signs and speed limits (noting enforcement burdens and driver compliance), and commented on farm ground valuations and tax comparisons with Randolph County.
- **01:34:04 Brian Shaw:** Spoke regarding 1315 East Main Street, noting a neighborhood association letter of support for Arlena Thomas and Sandra Bass. Suggested policy reforms to prevent demolition by neglect, penalize tax sale defaulters, and assist working-class residents with renovation/rewiring costs in municipal areas.
- **01:46:20 Cheryl Swingley:** Addressed solar energy discussions, noting that solar companies typically pay the difference in property taxes on leased farm ground, pointed to the Indianapolis airport solar installation as a long-term operational reference, cited recent Loyola University research on property values, and noted state-level policy limitations on community solar and net metering.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Highway updates: Community Crossings second call for 2025 has been canceled due to House Bill 1461. 600 West paving repairs scheduled around May 12 due to utility cuts. Walnut Street vacuuming and 12th Street Bridge delays noted.
 - Human Resources: Benefit audit final deadline is May 15; failure to submit dependent/spousal verification forms will result in loss of dependent benefits.
 - Mandatory cybersecurity training ("KnowBe4") compliance reports will be reviewed directly with department heads and elected officials.
- **Adjournment:** Motion to enter recess / adjourn. **Passed Unanimously** by roll call vote (01:54:27).

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